



CHAPTER 77.

An Act to make provision with respect to Ministers
appointed in connection with the prosecution of
war. [1st September 1939.]

BE it enacted by the King's most Excellent Majesty,
by and with the advice and consent of the Lords
Spiritual and Temporal, and Commons, in this present
Parliament assembled, and by the authority of the same,
as follows :—

1.—(1) His Majesty may by Order in Council direct that this Act shall apply to any Minister of the Crown appointed for the purpose of exercising functions connected with the prosecution of any war in which His Majesty may be engaged.

Application
of Act, and
capacity to
sit in House
of Commons.

(2) The office of a Minister to whom this Act applies or of a secretary appointed by such a Minister shall not render the holder thereof incapable of being elected to, or sitting or voting as a member of, the House of Commons, but not more than one secretary in each Ministry shall sit as a member of that House at the same time.

(3) Section two of the Re-election of Ministers Act, 1919 (which enables certain Ministers to sit in the House of Commons) shall not apply to any Minister to whom this Act applies.

9 & 10
Geo. 5. c. 2.

(4) In this Act the expression "the Minister" means any Minister to whom this Act applies, and the expression "Ministry" shall be construed accordingly.

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Minister to
take oath
of allegiance
and official
oath.

31 & 32 Vict. c.72.

2. The Minister shall take the oath of allegiance and the official oath, and shall be deemed to be included in the First Part of the Schedule to the Promissory Oaths Act, 1868.

Officers,
remunera-
tion and
expenses.

3.—(1) The Minister may appoint such secretaries, officers and servants as he may with the consent of the Treasury determine, and there shall be paid out of moneys provided by Parliament to the Minister, and to the secretaries, officers and servants appointed by him such salaries or remuneration as the Treasury may determine.

(2) The expenses of the Minister, to such amount as may be sanctioned by the Treasury, shall be paid out of moneys provided by Parliament.

Seal, style
and acts of
Minister.

4.—(1) The Minister may adopt an official seal and describe himself generally by such style and title as may be specified in his appointment, and the seal of the Minister shall be officially and judicially noticed, and shall be authenticated by his signature or that of a secretary or some person authorised by the Minister to act in that behalf.

(2) Every document purporting to be an order or other instrument issued by the Minister, and either to be sealed with the seal of the Minister authenticated in manner provided by this section, or to be signed by the secretary or any person authorised by the Minister to sign it, shall be received in evidence and be deemed to be an order or instrument issued by the Minister without further proof, unless the contrary is shown.

(3) A certificate signed by the Minister that any order or other instrument purporting to be made or issued by him was so made or issued, shall be conclusive evidence of the fact so certified.

31 & 32 Vict.
c. 37.
45 & 46 Vict.
c. 9.

(4) The Documentary Evidence Act, 1868, as amended by the Documentary Evidence Act, 1882, shall apply to the Minister in like manner as if he were mentioned in the first column of the Schedule to the

first-mentioned Act, and as if he or a secretary of the Ministry, or any person authorised by the Minister to act on his behalf, were mentioned in the second column of that Schedule, and as if the regulations referred to in those Acts included any document issued by the Minister.

5.—(1) His Majesty may by Order in Council transfer to the Minister in addition to any other functions assigned to him, any functions exercisable, whether under any enactment or otherwise, by any Government department, or may by such an Order authorise the Minister to exercise any such functions concurrently with the Government department concerned.

Transfer of
statutory
functions
from
Government
depart-
ments.

(2) Any Order in Council made under the last foregoing subsection may contain such incidental, consequential and supplemental provisions as may be necessary or expedient for the purpose of giving full effect to the Order, including provisions—

- (a) for the transfer of any property, rights and liabilities held, enjoyed or incurred by any Government department in connection with any powers or duties transferred;
- (b) for the carrying on and completion by or under the authority of the Minister of anything commenced by or under the authority of any Government department before the date when the Order takes effect;
- (c) for such adaptations of the enactments relating to any powers or duties transferred, or to be exercised or performed concurrently, as may be necessary to enable them to be exercised or performed by the Minister and his officers;
- (d) for the substitution of the Minister for any other Government department in any instrument, contract, or legal proceedings made or commenced before the date when the Order takes effect.

(3) A certificate issued by the Minister that any property has been transferred to him by virtue of an

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Order in Council made under this section shall be conclusive evidence of that fact.

(4) Any such Order in Council may be varied or revoked by a subsequent Order in Council.

Short title. 6. This Act may be cited as the Ministers of the Crown (*Emergency Appointments*) Act, 1939.

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